

26STLC00637 26STLC00637

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-06-29

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C06%2F29%2F2026

Source SHA-256: a3eb9afe08ec57969ebe7a73fb880d1c0daf3ded7e8029b2f8ec8bc32914c2fd

Case Number: 26STLC00637 Hearing Date: June 29, 2026 Dept: 26

TENTATIVE RULING:

Defendant Robert Nobles' Motion to Set Aside Entry of

Default is granted. The default entered on 03/12/2026 is hereby vacated.

Defendant Robert Nobles is to file and serve the proposed

Answer to the Complaint within 30 days of this ruling.

Analysis:

On January

29, 2026, Plaintiff Mercury Insurance Company ("Plaintiff") filed this action against Defendants Annie Nobles ("Defendant Annie") and Robert Nobles ("Defendant Robert"). Defendant Annie filed an Answer on March 2, 2026, but Defendant Robert did not. As a result, Plaintiff filed a request for entry of default against Defendant Robert on March 12, 2026, which the Court entered the same day.

Defendant

Robert filed the instant Motion to Set Aside Entry of Default on June 2, 2026.

The Motion was served on Plaintiff through Attorney John D. Laurie, Esq. by electronic mail on the same day. No opposition has been filed to date.

Discussion

Defendant

Robert moves to vacate the entry of default pursuant to the discretionary provision of Code of Civil Procedure section 473, subdivision (b). Under this statute, an application for relief must be made

within a reasonable time, no more than six months after entry of the order from which relief is sought, and must be accompanied by an affidavit of fault attesting to the party or attorney's mistake, inadvertence, surprise or excusable neglect. (Code Civ. Proc., § 473, subd. (b); English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.) The Motion must also attach a copy of the moving party's response to the Complaint. (Code Civ. Proc., § 473, subd. (b).)

Defendant

Robert timely filed and served the instant Motion less than two months after the entry of default and attached a copy of their proposed Answer to Complaint. (Motion, Garcia Decl., Exh. D.) The Motion is supported by the declarations of Defendants Annie and Robert, who attest that they did not know that delivery of the papers to Defendant Annie equaled service upon Defendant Robert. (Motion, Annie Nobles Decl., ¶¶2-4; Robert Nobles Decl., ¶¶3-4.) Defendant Annie specifically declares that she was not informed she was being sub-served on behalf of Defendant Robert. (Motion, Annie Nobles Decl., ¶4.) Being informed of the contents of the papers is required under Code of Civil Procedure section 415.20. Accordingly, the Court finds Defendant Robert Nobles has demonstrated a basis for relief on account of surprise or excusable neglect, under Code of Civil Procedure section 473, subdivision (b).

Conclusion

Defendant Robert Nobles' Motion to Set Aside Entry of Default is granted. The default entered on 03/12/2026 is hereby vacated.

Defendant Robert Nobles is to file and serve the proposed Answer to the Complaint within 30 days of this ruling.

Moving party to give notice.